WEB COPY

BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

(Criminal Jurisdiction)

Date : 14.10.2026

PRESENT

The Hon`ble Mr.Justice K.MURALI SHANKAR

CRL OP(MD). No.23514 of 2026

1.Gubendiran

2.Ramkumar

... Petitioners/
Accused 3 & 4

Vs

The State of Tamil Nadu rep by
The Inspector of Police,
Dindigul Taluk Police Station,
Dindigul District.
(Crime No.748 of 2026)

... Respondent/
Complainant

For Petitioners: Mr.M.Suresh,
Advocate

For Respondent : Mr.C.Susikumar,
Government Advocate (Crl.Side)

PETITION FOR BAIL Under Section 483 of B.N.S.S.

PRAYER :-

For Bail in Crime No.748 of 2026 on the file of the Respondent Police.

WEB COPY

ORDER : The Court made the following order :-

The petitioners / accused 3 and 4, who were arrested and remanded to judicial custody on 03.10.2026 for the offence punishable under Section 310(2) BNS, in Crime No.748 of 2026, on the file of the respondent police, seek bail.

2. The case of the prosecution is that the defacto complainant, who is running a finance company, and the accused persons were known to each other, that the defacto complainant had previously lent money to the accused persons whenever they sought financial assistance, that on 02.10.2026, at about 07.00 p.m., the first petitioner and the accused 1 and 2 entered the finance company, while the second petitioner and the accused 5 and 6 stood outside the office. Since the finance company was running successfully, the accused persons demanded money from the defacto complainant. When he refused to comply with their demand, the first accused slapped the defacto complainant and snatched his gold ornaments and at that time, the second petitioner and

WEB COPY

the sixth accused allegedly stood guard outside. On raising an alarm, the defacto complainant came out of the office, whereupon the accused persons fled the scene leaving behind the gold ornaments. Hence, the complaint.

3. The learned counsel appearing for the petitioners would submit that the petitioners are innocent and they have not committed any offence as alleged by the prosecution. He would further submit that the sixth accused was granted anticipatory bail by the Principal Sessions Court in Crl.M.P.No.2947 of 2026 on 13.10.2026 and that the petitioners are in judicial custody from 03.10.2026.

4. The learned Government Advocate (Criminal Side) appearing for the respondent police would submit that there are totally six accused and the petitioners are arrayed as accused 3 and 4 and that the petitioners are not having any previous cases.

5. Considering the nature of the charges

WEB COPY

levelled against the petitioners and also the facts that the petitioners are in judicial custody from 03.10.2026 and that the petitioners are not having any bad antecedents, this Court is inclined to grant bail to the petitioners subject to the following conditions:

6. Accordingly, the petitioners are ordered to be released on bail on their executing a bond for a sum of **Rs.25,000/- (Rupees Twenty Five Thousand only)** each with two sureties each for a like sum to the satisfaction of the learned Judicial Magistrate No.1, Dindigul, and on further conditions that:

(i)the sureties shall affix their photographs and left thumb impression in the surety bond and the Magistrate / concerned court may obtain a copy of their Aadhar card or Bank Pass Book to ensure their identity;

(ii)the petitioners shall report before the respondent police daily at 10.30 a.m., for a period of one month and thereafter, as and when required for interrogation;

WEB COPY

(iii)the petitioners shall not tamper with the evidence or witness either during investigation or trial;

(iv)the petitioners shall not abscond either during investigation or trial;

(v)On breach of any of the aforesaid conditions, the learned Magistrate / Trial Court is entitled to take appropriate action against the petitioners in accordance with law as if the conditions have been imposed and the petitioners are released on bail by the learned Magistrate / Trial Court himself as laid down by the Hon'ble Supreme Court in ***P.K.Shaji vs. State of Kerala [(2005)AIR SCW 5560];***

(vi)If the accused thereafter abscond, a fresh FIR can be registered under Section 269 BNS, 2023.

(K M S J)
14.10.2026

CSM

TO
1. The Judicial Magistrate No.1,
   Dindigul.
2. Do through
   The Chief Judicial Magistrate,
   Dindigul.
3. The Superintendent,
   District Prison,
   Dindigul District.

WEB COPY

K.MURALI SHANKAR,J

CSM

4. The Inspector of Police,
   Dindigul Taluk Police Station,
   Dindigul District.

5. The Additional Public Prosecutor,
   Madurai Bench of Madras High Court,
   Madurai.

ORDER
IN
CRL OP(MD) No.23514 of 2026

Date : 14.10.2026